

7.	30-2023-01319359 Won vs. American Honda Motor Co., Inc	1. Motion for Attorney Fees Plaintiff Jane Won (“Plaintiff”) moves for \$22,976.42 in attorney fees and costs, which breaks down to (1) \$14,042.00 in attorney fees for Strategic Legal Practices, APC ("SLP"); (2) a 1.35 multiplier enhancement on the attorney fees (or \$4,914.74; (3) \$2,019.72 in costs and expenses for SLP; and (4) an additional \$2,000.00 for Plaintiffs' counsel to review Defendant's Opposition, draft the Reply, and attend the hearing on this Motion. Defendant American Honda Motor Co., Inc. (“Defendant”) opposed the motion, argument that Plaintiff’s motion should be denied as untimely. Alternatively, Defendant argues that the attorney fees and costs should both be reduced. First, the Court finds that it has retained jurisdiction to determine the attorney fees and costs pursuant to Code of Civil Procedure section 664.6 and the settlement agreement between the parties. (See Code Civ. Proc., § 664.6; see e.g., <i>Hanna v. Mercedes-Benz USA, LLC</i> (2019) 36 Cal.App.5th 493, 505; ROAs 112, 115, and 133, Ex. 1, Defendant American Honda Motor Co., Inc.’s Statutory Offer to Compromise, ¶ 3.) As such, the Court finds that the timing requirements discussed in the opposition do not apply and the Court has jurisdiction to hear this motion pursuant to Code of Civil Procedure section 664.6. Moving to the merits of the motion, the Song-Beverly Consumer Warranty Act provides remedies for consumers that have purchased, among other consumer goods, new vehicles. Remedies include the right to recover “damages and other legal and equitable relief.” (Civ. Code, § 1794, subd. (a).) Remedies include those discussed in Code of Civil Procedure section 1794(d). Code of Civil Procedure section 1794(d) states: “If the buyer prevails in an action under this section, the buyer shall be allowed by the court to recover as part of the judgment a sum equal to the aggregate amount of costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution of such action.” (Civ. Code, § 1794, subd. (d).) “A prevailing buyer has the burden of showing that the fees incurred were ‘allowable,’ were ‘reasonably necessary to the conduct of the litigation,’ and were ‘reasonable in amount.’” (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1158; see also <i>Morris v. Hyundai Motor America</i> (2019) 41 Cal.App.5th 24, 34-35; <i>Levy v. Toyota Motor Sales, U.S.A., Inc.</i> (1992) 4 Cal.App.4th 807, 816.) “Determining a reasonable attorney fee award in Song-Beverly Act cases ordinarily begins with the ‘lodestar,’ [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.” (<i>Tidrick v. FCA US LLC</i> (2025) 112 Cal.App.5th 1147, 1157 [internal quotations omitted]; <i>Reck v. FCA US LLC</i> (2021) 64 Cal.App.5th 682, 691 [“To determine a reasonable attorney fee award, the trial court applies the lodestar method.”].) “The lodestar may ‘then be adjusted based on factors specific to the case, in order to fix the fee at the fair market value of the legal services provided.’ ” (<i>Id.</i> [citing <i>Warren v. Kia Motors America, Inc.</i> (2018) 30 Cal.App.5th 24, 36, 241 Cal.Rptr.3d 263 (<i>Warren</i>)].) “The lodestar method ‘anchors the trial court’s analysis to an objective determination of the value of the attorney’s services,’ and thus ensures the amount awarded is not arbitrary.” (<i>Id.</i>, 1157–1158.)
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“The Song-Beverly Act’s attorney fee provision requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1158 [internal quotations omitted].) “These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved.” (*Ibid.*; see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 34, *as modified* (Oct. 11, 2019); *Reck v. FCA US LLC* (2021) 64 Cal.App.5th 682, 691 [“These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.”].) “If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount.” (*Ibid.*; see also *Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 36, *as modified* (Oct. 11, 2019); *Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

“The reasonable hourly rate is that prevailing in the community for similar work.” (*Tidrick v. FCA US LLC* (2025) 112 Cal.App.5th 1147, 1157.) “The relevant “community” is generally based on where the services are rendered, i.e., where the court is located.” (*Ibid.*) “Accordingly, the reasonable hourly rate in this case is that charged by consumer attorneys practicing in the local legal community in Orange County.” (*Ibid.*)

In considering whether to apply a multiplier (positive or negative) the court should conder the following and other relevant circumstances: complexity of the case, procedural demands, delay by the opposing party, and litigation tactics used by the opposing party. (*Warren v. Kia Motors America, Inc.* (2018) 30 Cal.App.5th 24, 41.)

Notably, “it is inappropriate and an abuse of a trial court’s discretion to tie an attorney fee award to the amount of the prevailing buyer/plaintiff’s damages or recovery in a Song-Beverly Act action.” (*Morris v. Hyundai Motor America* (2019) 41 Cal.App.5th 24, 35, *as modified* (Oct. 11, 2019).)

Here, the parties agreed in their Settlement Agreement that Plaintiffs are the prevailing party for purposes of attorney fees and costs.

Pursuant to the terms of the signed 998 offer, the Court **DENIES** Plaintiff’s request for the “additional \$2,000.00” sought “for Plaintiffs’ counsel to review Defendant’s Opposition, draft the Reply, and attend the hearing on this Motion.” The 998 offer signed by Plaintiff on 03/14/2024 expressly states that “Plaintiff shall not recover post-offer costs, including attorneys’ fees from the date of this Statutory Offer.”

In addition, the Court **DENIES** Plaintiff’s request for the “a 1.35 multiplier enhancement on the attorney fees (or \$4,914.74).” The Court finds that the circumstances of this case were not so complex or procedurally demanding such that a lodestar enhancement is appropriate. The Court also finds that Defendant did not delay the case or use litigation tactics that would justify the application of an enhancement/multiplier.

The Court **GRANTS** the motion for attorney fees in the amount of \$10,609. The Court finds that Plaintiff is not entitled to fees related to the motion to stay and those incurred after Plaintiff signed the 998 offer on 03/14/2026. Moreover, the Court slightly reduced the hourly rates of Vaziri, Sanam (2023) and Carvalho, Tionna (2024) by \$15 each based on the prevailing

		reasonable hourly rate in Orange County and their experience. Otherwise, the Court finds that Plaintiffs have carried their burden to establish that the attorney fees sought are reasonable. For the same reasons discussed above, the Court reduces the costs by \$483.20. The Court is not persuaded the court reporter fees should be stricken and is also not persuaded that the discovery motion costs were unnecessary since the motions were filed before the motion to compel arbitration was filed and before the court ordered a stay. Given the above, the Court will award \$1,536.52 in costs Given the above, the <u>motion for attorney fees</u> is GRANTED in the amount of \$10,609. The motion is also GRANTED as to Plaintiff's request for \$1,536.52 in costs. The motion is DENIED as to the <u>other fees requested</u>. Plaintiff's request for <u>judicial notice</u> of other court orders on motions for attorney fees is DENIED. Such orders are not binding on the Court. A court may deny a request for judicial notice on the ground that the material is not relevant to the determination of the issues. (<i>State Compensation Ins. Fund v. ReadyLink Healthcare, Inc.</i> (2020) 50 Cal.App.5th 422, 442.) Plaintiff to give notice.
9.	30-2024-01373470 Rojas vs. Pickens	1. Motion for Order to Stay Proceedings Plaintiffs Larry Rojas and Yesenia Diaz ("Plaintiffs") move for an order imposing a stay of all proceedings in this action pending resolution of the related criminal matter against defendant Matthew Pickens. " 'The Constitution does not require a stay of civil proceedings pending the outcome of criminal proceedings. [Citation.] A court, however, has the discretion to stay civil proceedings, postpone civil discovery, or impose protective orders and conditions " ' "when the interests of justice seem [] to require such action, sometimes at the request of the prosecution, . . . sometimes at the request of the defense[.]" ' ' ' [Citations.]" (<i>Avant! Corp. v. Superior Court</i> (2000) 79 Cal.App.4th 876, 886.) The factors to be considered in deciding whether to impose a stay of civil proceedings in the face of parallel criminal proceedings are: "(1) the interest of the plaintiffs in proceeding expeditiously with this litigation or any particular aspect of it, and the potential prejudice to plaintiffs of a delay; (2) the burden which any particular aspect of the proceedings may impose on defendants; (3) the convenience of the court in the management of its cases, and the efficient use of judicial resources; (4) the interests of persons not parties to the civil litigation; and (5) the interest of the public in the pending civil and criminal litigation." (<i>Avant!</i>, 79 Cal.App.4th at p. 887, citing <i>Keating v. Office of Thrift Supervision</i> (9th Cir. 1995) 45 F.3d 322, 324-325.) Plaintiffs argue that a stay pending resolution of the criminal action against Matthew Pickens is warranted because Matthew Pickens's Fifth Amendment rights are implicated here and a stay would avoid numerous disputes related to his potential invocation of the privilege. Plaintiffs contend that the <i>Keating</i> factors favor a stay, a stay will not burden defendants, and a stay would further the convenience of the Court because if the criminal case against Matthew Pickens results in a conviction, liability against him in this civil action need not again be proven. Here, Plaintiffs allege that Matthew Pickens caused Larry Rojas to be shot by a firearm with the intent to harm him. There is a parallel criminal case pending against Matthew Pickens related to